

STATEMENT OF WORK

SECTION C – DESCRIPTION/SPECIFICATION/WORK STATEMENT

C.1 BACKGROUND

The Naval Surface Warfare Center, Dahlgren Division (NSWCDD), Unmanned & Expeditionary Weapon Systems Division (H40), actively supports the U.S. Navy, United States Special Operations Command (USSOCOM), U.S. Army, U.S. Marine Corps, Department of War (DOW), Department of Homeland Security (DHS), and Department of Justice (DOJ) agencies by providing design and fabrication, rapid prototyping, and rapid technology insertion. This is accomplished through rigorous systems engineering research, design, development, and analysis applied to Joint Fires and Land Attack Command, Control, Communications, Computers, Intelligence, Surveillance and Reconnaissance (C4ISR), time critical targeting, space technology, satellite tracking systems and global positioning systems applications.

Recent support activities applicable to this Statement of Work (SOW) include the Battle Management Systems (BMS), Assault Amphibious Vehicle (AAV) projects, manned and unmanned platform integration and robotic systems, weapon control systems development, and all future states of these programs and technologies. Required tasking shall be provided in further detail with specific individual Delivery Orders. Delivery Orders will consist of Firm Fixed Price (FFP) and Cost-Plus-Fixed-Fee (CPFF) type orders. CPFF orders will be for Level of Effort or completion type tasks.

C.2 SCOPE

The primary focus of this contract shall be delivery of tactical systems to the warfighter. The purpose of this requirement is to provide prototype development, hardware fabrication, hardware for hardware prototype or prototype higher volume units and kits, and project management. Specifically, the Contractor shall provide engineering design, development, and testing. Additionally, the Contractor shall provide drawing development, bill of material development, fabrication, design analysis, and manufacturability analysis.

C.2.1 APPLICABLE DOCUMENTS

The following documents are applicable to this SOW. The most current versions of these documents are accessible through the internet or will be provided to the Contractor upon request.

Other Department of Defense Specifications/Standards/Other Applicable Documents may become applicable throughout the life of the contract and may be added to the contract via modification.

The Contractor shall ensure compliance with the most current versions of these documents throughout the life of the contract:

Number	Document Name
SAE AS5553	SAE Aerospace Standard 5553
NISPOM – 32 Code of Federal Regulation Part 117	National Industrial Security Program Operating Manual (NISPOM)
NSWCDDINST 5510.4B	NSWCDD Command Security Manual
SEAD-3	Security Executive Agent Directive 3 – Reporting Requirements for Personnel with Access to Classified Information or Who Hold a Sensitive Position
SEAD-3 Implementation Memo	Implementation of Security Executive Agent Directive 3, Reporting Requirements for Personnel with Access to Classified Information or Who Hold a Sensitive Position
DODI 5200.48	Controlled Unclassified Information
SECNAVINST 5210.8F	Department of Navy Records Management Program
NSWCDDINST 5100.1F	Occupational Safety and Health Program
NAVADMIN 216/15	Cyber Hygiene Authorization to use Personal Wearable Fitness Devices
NAVSEA S0420-AA-RAD-010 – REV 2A	Radiological Affairs Support Program (RASP) Manual
DODI 8510.01	Risk Management Framework for DOD Systems
CJCSI 6211.02D	Defense Information Systems Network (DISN) Responsibilities
DODM 1000.13	Department of Defense Identification (ID) Cards
NAVSEAINST 4200.19 (series)	Planning, Use and Control of Services Contracting
COMUSFLTFORCOM/COMPACFLT 6320.3B	Medical Screening for U.S. Government Civilian Employees, Contractor Employees, Guests and Visitors Prior to Embarking Fleet Units

Open Architecture (OA) - The Contractor shall develop and maintain an architecture that incorporates appropriate considerations for re-configurability, portability, maintainability, technology insertion, vendor independence, reusability, scalability, interoperability, upgradeability, and long-term supportability as defined in the OA Contract Guidebook (<https://apps.dtic.mil/sti/pdfs/ADA550060.pdf>).

Other applicable standards, practices and procedures related to the design, construction and material selection for deliverable prototypes include the following:

- AFSC DH 1-6 System Safety
- SAE-AS50881 Aerospace Standards, Wiring Aerospace Vehicle
- IPC J-STD-001 Space and Military Applications Electronic Hardware Addendum to IPC J-STD-001H, Requirements for Soldered Electrical and Electronic Assemblies
- IPC-A-610E Acceptability of Electronic Assemblies
- IPC/WHMA-A-620A Requirements & Acceptance for Cable & Wire Harness Assemblies

- MIL-HDBK-454 General Guidelines for Electronic Equipment
- MIL-STD-130N Identification Marking of U.S. Military Property
- MIL-STD-188-220 (series) Interface Standard for Digital Message Transfer Device (DMDT Subsystems)
- MIL-STD-461 Requirements for the Control of Electromagnetic Interference Characteristics of Subsystems and Equipment
- MIL-STD-464 Electromagnetic Environmental Effects Requirements for Systems
- MIL-STD-704 Department of Defense Interface Standard, Aircraft Electric Power Characteristics
- MIL-STD-810 Department of Defense (DoD) Test Method Standard for Environmental Engineering Considerations and Laboratory Tests
- MIL-STD-882 System Safety Program Requirements
- MIL-STD-1553 Digital Time Division Command/Response Multiplex Data Bus
- MIL-STD-1587 Material and Process Requirements for Aerospace Weapons Systems
- MIL-STD-1760 Department of Defense Interface Standards for Aircraft/Store Electrical Interconnection System
- MIL-STD-1791 Designing for Internal Aerial Delivery in Fixed Wing Aircraft

Circuit cards shall be fully populated and built to IPC 610 Class 2 level and inspected to IPC A-600 Class 2.

Printed Circuit Board (PCB) surface shall be Hot Air Surface Leveled (HASL), as called out in Gerber files.

For cabling, IPC 620 shall include AS50881, MIL-STD-1310, 461, 464, 704.

Specific versions of standards, handbooks, and applicable interface documentation will be articulated in individual Delivery Orders for the respective prototype deliverables.

Drawings shall be in accordance with ANSI/ASME applicable standards and practices with specific tailoring provided in individual Delivery Orders.

Technical Data Packages (TDP) shall be of sufficient quality to enable prototype reproduction by qualified vendors. As a minimum, per MIL-STD-31000, TDP quality shall be Level II (Developmental) with Level III (Production) aspects as specified in individual Delivery Orders.

Copies of Government specifications, standards, handbooks and guidance data listed above may be obtained from:

<https://quicksearch.dla.mil/qsSearch.aspx>

C.3 REQUIREMENTS

C.3.1 PROTOTYPE DEVELOPMENT

C.3.1.1 The Contractor shall provide prototype development, which includes all or any portion of the hardware development cycle, up to and including the development of a complete prototype

system. Prior to commencement of prototype development, the Government will provide the detailed specifications for each required prototype. Components of the prototype development cycle include concept development, requirements collection, system design, systems engineering, material specification development, material acquisition, environmental resiliency design, prototype development, prototype testing, systems integration, systems testing, and systems functional demonstration based on performance requirements as documented in individual Delivery Orders.

The desired prototypes consist of hardware components including weapons control systems, command and fire systems, control box assemblies, training panel assemblies, cables, printed wiring assemblies, antennas, customized testing equipment, enclosures, and electronic racks that physically support the hardware which will be mounted in a variety of aircraft, ships, and vehicles.

C.3.1.2 Each prototype system developed, tested, and maintained shall be part of a comprehensive package, including all hardware design tool outputs (e.g., 3D hardware models, assemblies, parts, drawings, bills of materials, etc.), circuit board design tool outputs (e.g., Altium Designer project, Gerber files, bills of materials, etc.) along with related test procedures and user/maintainer documentation. Prototype development, enhancements, testing, and maintenance deliverables will be identified in individual Delivery Orders. **(CDRL A007)**

C.3.1.3 The Contractor shall provide deliverable documentation such as technical specifications and Requirement Traceability Matrixes (RTM), which list and describe all requirements for the prototype system, status on whether the current version meets those requirements, and the assigned priority for each requirement. The RTM shall document requirements currently met, those expected to be met in the current version, and any deferred requirements to facilitate project completion tracking. Specific deliverable documentation will be defined in individual Delivery Orders. Additional requirements may be solicited after each subsequent version of the prototype and documented via revisions to technical specifications as directed by individual Delivery Orders and change requests as approved by the Government.

The intent of the production drawings is to convey sufficient information and detail to move the prototype assembly into subsequent initial outfitting. The Contractor shall initially release the data package to the Government with the delivery of the first article system with incremental baseline updated releases to be delivered throughout the development and prototype pre-production effort based on Government approved change requests and Engineering Change Notices (ECN). Once a prototype stabilizes and can move into full production, the prototype will be competitively procured under a separate Firm Fixed Price (FFP) Delivery Order.

C.3.1.4 The Contractor shall conduct testing. Delivery Orders will define all testing requirements to be conducted for the qualification of fabricated assemblies. The Delivery Orders will define responsibility (Contractor, Government or joint) for development and execution of Acceptance Test Procedures (ATP) and Hardware Certification Test (HCT). In more mature designs, the Government will be able to provide these types of tests to the Contractor. In earlier stages of TDP development, the Contractor will not be given these types of tests.

C.3.1.5 The Contractor shall deliver all prototypes and associated intellectual property developed under this contract with a minimum of Government Purpose Rights; no Contractor proprietary hardware or may be used without the advance concurrence of the Contracting Officer's Representative (COR) and Contracting Officer. The Contractor shall identify and document proprietary hardware components used in the prototype pre-production of the hardware systems prior to integration.

C.3.1.6 The Contractor shall attend meetings with other Contractors and Government agencies but in no way shall represent the Government.

C.3.1.7 The Contractor shall conduct pre-development and development efforts by scheduling, coordinating, and participating in team meetings, recommending process improvements, assisting in managing agendas, and facilitating topic closures, and recording Government decisions/actions. The Contractor shall attend briefings and meetings, draft detailed notes and action items, and compose and distribute minutes documenting action items, discussions, and decisions reached. The Contractor shall in no way represent the Government in these meetings. **(CDRL A002, A003)**

C.3.1.8 The Contractor shall identify long lead time parts or parts that appear to becoming end-of-life (obsolete) during the rapid prototyping phases. The purpose of this is so that the Government can order these parts sooner than the production Delivery Orders or do lifetime buys, and provide them as Government Furnished Material (GFM) for future Delivery Orders. After the issuance of a Delivery Order, the Contractor shall procure long lead time part hardware and kits for specified systems. **(CDRL A009)**

C.3.1.9 The Contractor shall provide organizational development, performance improvement, strategic planning, and risk assessment. The Contractor shall maintain a risk tracking database and provide risk status reporting with the Monthly Progress Report. The Contractor shall identify cost saving measures for each Delivery Order and shall document the cost savings plan in the Monthly Progress Report. **(CDRL A001, A009)**

C.3.1.10 Onsite hardware efforts may be required of Contractor personnel with specific skill sets. Onsite locations are considered to be at NSWCD. For on-site support, the Contractor shall design and integrate hardware systems, integrate configuration management and workflow tools, trouble shoot hardware systems, disassemble and assemble hardware and hardware kits, add new components to hardware or hardware kits, customize equipment, machine equipment, package and ship items, develop drawings and specification, conduct other activities associated with successfully deploying hardware prototype or prototype pre- production units and kits, and perform joint ATPs and other quality control measures. **(CDRL A007, A009, A00A)**

C.3.1.11 The Contractor shall conduct hardware efforts at the Contractor's facilities including engineering design and integration of hardware systems, integration and support of configuration management and workflow tools, trouble shooting of hardware, disassembly and assembly of hardware and hardware kits, adding new components to hardware or hardware kits, customizing equipment, machining equipment, packaging, shipping, drawing and specification development, and other activities associated with successfully deploying hardware prototype or prototype pre-

production units and kits. This support shall include fabrication and machining of replacement parts or equipment for fielded systems or platforms. (CDRL A007, A009, A00A)

C.3.2 HARDWARE FABRICATION

C.3.2.1 The Contractor shall provide hardware fabrication, which includes any portion of the hardware cycle, up to and including fabrication of complete systems or series of complete pre-production systems. The fabricated systems will be used for extensive testing in laboratories, at test sites, and as deployed units in theater. The delivery schedule and quantity of systems to be produced will be specified in individual Delivery Orders. The Delivery Orders may be revised by the Government to update the delivery schedule and quantities to meet emergent Government objectives, to include quick reaction operational requirements.

The hardware fabrication cycle includes material specification development, hardware component identification and selection, material acquisition, material staging, material tracking, fabrication, machining, assembly, quality control, testing, certification, packaging and shipping. Hardware components or hardware systems fabricated shall consist of a complete package, which includes all associated documentation.

C.3.2.2 The Contractor shall utilize complete set of prototype production models and drawings approved by the Government for each fabrication run.

C.3.2.3 Changes during fabrication may be initiated by either the Government or the Contractor. Changes initiated by the Contractor must be approved, in writing, by the Government prior to implementation. The Contractor shall document all changes during fabrication as revisions on all the impacted drawings and associated documentation, and all changes shall be accompanied by a formal Change Request. The Change Request shall detail any changes, including the initiator and approver of the change, the reason for the change, the resulting impact of the change, and the change date. For hardware design changes, the Contractor shall document the changes to the hardware data package via Engineering Change Notices (ECN). The ECN package shall include full red-line markups of the affected drawings for formal review and approval by the Government prior to implementation into the baseline. (CDRL A004, A007, A008, A00B, A00D)

C.3.2.4 The Contractor shall manufacture and deliver test tools used for Acceptance Testing. A Government owned TDP will be developed and sent to the Contractor for the fabrication of their own test tools. The Contractor shall use these tools for testing at their facilities to ensure that the Government and Contractor are using the same test procedures. These tools shall be tracked in the Government Furnished Property Reports (CDRL A00C).

C.3.2.5 The Contractor shall apply an item unique identifier (IUID) based on MIL-STD-130 (construct 2) latest version, to all units. The IUID shall include the cage code of the design activity, the cage code of the manufacturer, the part number and the serial number and additional written information, as may be designated by the Government.

C.3.3 NON-RECURRING ENGINEERING AND REPAIRS

C.3.3.1 The Contractor shall make upgrades and enhancements to systems test and tactical equipment. During rapid fielding of systems, the Contractor shall make specific last minute, Government approved, changes to systems. In this case, the Government will submit over to the Contractor a revised TDP for upgraded systems.

C.3.2 The Contractor shall make repairs to products produced under this requirement. Repair items shall include tactical and testing equipment. This process includes the Government sending the repairable units back to the Contractor, along with a Work Order with the Government's findings. These units either come back from the field or rigorous testing events. The Contractor shall make the necessary repairs, deliver the unit back to the Government, and submit analysis reports and repair reports (CDRL A009). Specific reports for each requirement will be called out in the Delivery Orders.

C.4 ACCEPTANCE CRITERIA

C.4.1 The Contractor shall conduct a Government approved Factory Acceptance Test (FAT) for all first article prototype deliverables. The Contractor shall document in the FAT all electrical, mechanical and visual inspections and all system functional test and demonstrations necessary to verify that each prototype meets the requirements of the SOW for the respective Delivery Order. The Contractor shall provide the FAT procedure to the Government for review (CDRL A005). After approval by the Government, the FAT shall be placed under Contractor configuration control. Any revision to the FAT shall require Government approval. The FAT shall:

- Identify how each functional and performance characteristics shall be demonstrated or tested;
- Identify measurable parameters by acceptable operating limits and use measured results to record performance metrics; and
- Identify special tools and test equipment required for performing the FAT.

C.4.2 The Contractor shall generate and submit a FAT report for each first article prototype deliverable (CDRL A006). The FAT report shall include, as appended material, any lower level test, vendor tests or vendor certifications. The FAT report shall include an indentured As-Built Configuration List (ABCL) down to the Lowest Replaceable Unit (LRU) level. The indentured ABCL shall identify drawing numbers, revision levels, serial numbers, and any applicable Engineering Change Proposals (ECP) or configuration variances.

C.4.3 Subsequent prototype deliverables shall pass a Government developed and conducted Acceptance Test Plan/Procedure (ATP) or Test Procedure (TPROC) prior to official acceptance.

C.5 MANDATORY REQUIREMENTS

The following mandatory requirements shall be maintained throughout the life of this contract.

Requirement 1: Facility location

The Offeror's primary facility providing support under this contract must be located within 200 miles of NSWCDD, Dahlgren, VA.

Requirement 2: Certifications

The Offeror's manufacturing facilities must be ISO 9001:2015 and AS9100D certified. These certifications must be for the following process areas: Configuration Management, Project Planning, Project Management and Control, Supplier Agreement Management, Product and Process Quality Assurance, Requirement Management & Development, Risk Management, Verification, and Validation.

C.6 PROGRESS REPORTING, DELIVERABLES, AND OTHER CONTRACT MANAGEMENT

C.6.1 TASK PRIORITIZATION MEETINGS

The Contractor shall participate in periodic Task Prioritization Meetings with the COR and project/work area/Delivery Order points-of-contact. The purpose of these meetings is to convey the Government's technical program schedules and priorities, and to identify corresponding project priorities. It is anticipated that these meetings shall occur on a weekly basis (**CDRL A002**). The Contractor shall provide a Weekly Status Report to convey the status of current activities, and the Contractor shall document meeting minutes of the meetings. (**CDRL A004**). If necessary, schedule adjustments will be made via Delivery Order modifications. Any perceived conflicts with the SOW shall be directed to the Contracting Officer and Contracting Officer's Representative (COR).

C.6.2 MONTHLY PROGRESS REPORT

The Contractor shall submit a Contracting Officer's Management Report. (**CDRL A001**) The Contractor shall maintain and provide a list of all personnel assigned to the Contract. In accordance with G-232-H005 and FAR 52.216-7, the Contractor shall provide the COR supporting documentation, including receipts, for all travel and material purchases with each invoice submission.

C.6.3 TECHNICAL INTERCHANGE MEETINGS

The Contractor shall participate in TIMs as required to support kicking off new requirements, or to support more complex emerging rapid prototyping requirements. All TIMs shall be approved by the COR. (**CDRL A002, A003**)

C.6.4 LOCATION OF MEETINGS AND REVIEWS

Meetings and reviews may be held at Government or Contractor sites, as coordinated and approved by the COR. In addition, the Contractor shall have the ability to host web enabled and teleconference meetings to reduce travel cost and improve the effectiveness of Government/Contractor meetings.

C.7 SKILLS AND TRAINING

C.7.1 The Contractor shall provide capable personnel with qualifications, experience levels, security clearances, and necessary licenses, certifications, and training required by Federal, State, and Local laws and regulations.

C.7.3 Training necessary to ensure that personnel performing under this Contract maintain the knowledge and skills to successfully perform the required functions is the responsibility of the Contractor. Training necessary to maintain professional certification is the responsibility of the Contractor. The Contractor shall provide training opportunities to maintain Contractor capabilities and/skills to coincide with changing technology environments.

C.8 OTHER DIRECT COSTS

During the performance of this contract the Contractor will have to travel and procure material and consumables to perform the tasking of the SOW.

C.8.1 Travel

The Contractor shall be required to travel in performance of this contract. The numbers of trips and types of personnel traveling shall be limited to the minimum required to accomplish work requirements and shall be requested of and authorized in advance by the COR by email. All requests shall show the appropriate contract number, the number of people traveling, the number of days for the trip, the reason for the travel, an estimated cost (with G&A separate), and any high cost or unusual costs expected. The Contractor is not authorized to perform any travel that is not in conjunction with this effort. All travel shall be conducted in accordance with Federal Acquisition Regulation (FAR) 31.205-46 Travel Costs. Locations will be determined by the Government and are subject to change.

Representative travel locations may include:

Dahlgren, VA
Other Warfare Centers

C.8.2 Direct Charge of Materials

(a) During the performance of this contract it may be necessary for the Contractor to procure materials to respond to the mission requirements listed in the SOW. Any material provided by the Contractor is subject to the requirements of the FAR, DFARS, and the applicable Department of Navy regulations and instructions.

(b) The Government may identify Not to Exceed (NTE) ODC Material Costs for individual Delivery Orders issued under this effort. Where identified, the NTE material costs provide the maximum allowable cost of materials and shipping for the Delivery Order.

(c) The Contractor shall be responsible for providing a complete price or costs analysis of associated material costs. This analysis will thoroughly support a determination that the prices are fair and reasonable and how that conclusion was made. Proposal analysis guidelines in FAR 15.404 outline acceptable procedures that can be used to evaluate these prices/costs. The

Contractor shall not enter into any binding agreements with suppliers until the Government has reviewed and concurred with this analysis. The analysis will be submitted electronically to the COR for review and approval, unless already provided as part of the contract cost proposal.

(d) The Contractor is required to possess and maintain an adequate property management system. The system must track all materials/ODCs associated with this contract. Upon completion of the contract Period of Performance, all material associated with this contract that were purchased by the Contractor and not depleted or previously delivered to the Government during the performance of this contract shall become the property of the Federal Government. The Contractor shall transfer all materials, not depleted or previously delivered to the Government, to the COR by way of a Material Inspection and Receiving Report (DD Form 250) in accordance with DFARS PGI 245.402-71.

C.8.3 Counterfeit Parts and Materiel

(a) The following minimum processes shall be implemented in order to minimize the risk of use of counterfeit parts.

(b) The Contractor shall establish processes to minimize the risk of procuring and using counterfeit parts and materiel. The Contractor shall document these processes and provide those documented processes to Government representatives upon request. **(CDRL A00E)** The Contractor shall ensure that all requirements are flowed down to Sub-contractors and suppliers at all tiers.

(c) At a minimum, these processes shall ensure that:

- Materiel that is either in production or currently available shall be purchased from an original manufacturer, aftermarket manufacturer, or other authorized supplier.
- Materiel that is neither in production nor currently available may be purchased from suppliers, including unauthorized suppliers, that meet appropriate counterfeit avoidance criteria documented in industry anti-counterfeit standards. The Contractor shall notify the KO and COR when critical or high-risk materiel is procured from an unauthorized source. The Contractor shall provide this notification before materiel is installed so mitigation actions can be taken.
- The Contractor shall generate a Counterfeit Prevention Plan in accordance with DI-MISC-81832 Counterfeit Prevention Plan, and the requirements of this Data Item Description (DID) and SAE Aerospace Standard 5553 (SAE AS5553) Counterfeit Electronic Parts; Avoidance, Detection, Mitigation, and Disposition (CDRL A00E).
- The Contractor shall maximize the use of authentic, originally designed and/or qualified parts.
- The Contractor shall assess potential suppliers to minimize the risk of receiving counterfeit parts or materiel.
- The Contractor shall have purchasing procedures which confirm whether a selected supplier is authorized (as defined in SAE AS5553) for each purchase.
- The Contractor shall define minimum inspection and test requirements for parts being procured and shall ensure that in-house, third-party, and/or supplier inspection and test procedures and facilities comply with the requirements of this section. These minimum

inspection and test requirements shall specify appropriate test methods to detect potential counterfeit parts and materiel.

- The Contractor shall require a certificate of conformance (as defined in SAE AS5553) and supply chain traceability for all electronic part purchases.
- The Contractor shall use government or industry services such as Government-Industry Data Exchange Program (GIDEP) and other commercially available services to identify part or supplier quality or authenticity problems.
- The Contractor shall maintain critical or high-risk materiel traceability that enables tracking through the supply chain to the original manufacturer if purchased from an authorized source or to the unauthorized source at a minimum if purchased from an unauthorized source.
- For maintenance and repair efforts, the Contractor shall assess materiel for criticality or high-risk of counterfeiting. The Contractor shall document materiel identified as critical or high-risk. The Contractor shall document mitigating actions to ensure that authentic critical or high-risk materiel is procured and installed.

(d) The Contractor shall immediately notify the COR of the occurrence of a suspect or confirmed counterfeit part or materiel. Contractor shall notify the COR of all actions taken to identify, contain, and impound all product from the lot, within 7 working days of confirmation of the counterfeit status. The Contractor shall initiate and submit an ALERT to GIDEP within 60 days of knowledge of the counterfeit part or materiel.

(e) Suspect counterfeit parts and materiel shall be impounded with all other items from the same lot. The Contractor shall identify and locate all potential users or hardware items with the suspect part or materiel and contain the product which has this suspect part or materiel, pending confirmation of the part or materiel's authenticity. The Original Equipment Manufacturer (OEM) may be involved at this point to verify authenticity. Confirmed counterfeit materiel shall be contained and provided to investigative agencies for ongoing investigation or prosecution. The counterfeit product shall not be scrapped or otherwise disposed of without approval from investigative authorities or the Contracting Officer. Confirmed counterfeit product shall be disposed of in a way which would not allow its resale or reuse.

(f) Counterfeit parts are defined in SAE AS5553. Counterfeit parts may be electronic or mechanical in nature. Counterfeit electronic parts may typically be used parts which have been refurbished and represented as new. Commonly counterfeited electronic parts include parts such as microcontrollers or specially screened devices, or common parts, which have several pin-compatible versions from multiple manufacturers, such as memory devices and operational amplifiers. Counterfeit mechanical parts are typically improperly made, marked, or treated products. Examples are improper anodization or heat treatments (or falsified data), mismarked parts sold as higher grade steel, or used/fake parts such as valves or circuit breakers.

C.9 GOVERNMENT FURNISHED SPACE/GOVERNMENT FURNISHED PROPERTY

C.9.1 Government Furnished Space

C.9.1.1 The Government will not provide office space for contract performance. Some of the performance on this contract will occur at NSWCD. NSWCD has laboratory and outdoor

experimental facilities and equipment. Contractors shall be provided access to these resources, when appropriate.

C.9.2 Government Furnished Property (GFP)

(a) GFP may be issued under this contract. The Government will make available the Government Property identified in the attachment J.2, Government Furnished Property on a rent-free basis in performance of the contract. The Contractor is responsible for all costs related to making the property available for use, such as payment of all transportation, installation, or rehabilitation costs.

(b) The Contractor shall maintain and report the inventory of GFP (**CDRL A00C**) issued under this contract. This requirement is in addition to anything required by regulation, statute, or the assigned Government Property Administrator.

(c) The Government will provide incidental items as required by the Contractor for integration and testing of prototype deliverables. These deliverables shall successfully pass the FAT before delivery to the Government. Specific GFE will be identified in individual Delivery Orders for the respective prototype deliverables.

(a) The Government may provide drawings and interface documentation based upon the level of platform integration. If required, this information will be provided in individual Delivery Orders.

C.10 SECURITY

C.10.1 Personnel and Facility Clearance Requirements

(a) Facility Clearance Level (FCL) Requirement: The Prime Contractor supporting this contract is required to have an FCL of SECRET and safeguarding clearance level of SECRET at the primary facility supporting this contract.

(b) Personnel Clearance Level (PCL) Requirement: All personnel directly supporting this contract, except Management and Support personnel, are required to have, as a minimum, a current SECRET security clearance in the Defense Industrial Security System (DISS). Interim clearances are acceptable.

C.10.2 The Contractor will have access to information and compartments with a SECRET classification. All deliverables associated with this contract are unclassified unless otherwise specified. Access to classified spaces and material and generation of classified material shall be in accordance with the attached DD Form 254 (Attachment J.1).

C.10.3 The Department of Defense Contract Security Classification Specification (DD Form 254) provides the security classification requirements for this effort. The Contractor shall obtain facility and personnel security clearances as required by the National Industrial Security Program prior to starting to work on tasks requiring clearances. Access to classified spaces and material

and generation of classified material shall be in accordance with the National Industrial Security Program Operating Manual (NISPOM) 32 Code of Federal Regulation (CFR) Part 117 and the NSWCDD Command Security Manual.

C.10.4 The Contractor must comply with guidelines specified on the DD Form 254.

C.10.5 Controlled Unclassified Information (CUI), formerly For Official Use Only (FOUO), and Personally Identifiable Information (PII) generated and/or provided under this contract shall be safeguarded and marked as specified in DoD 5400.7R Chapters 3 and 4. The Contractor will fabricate, modify or store classified hardware (circuit boards with firmware, laptop computers, etc.) but will not exceed the two cubic feet storage limited as specified in the ISFD. The Contractor shall require access to Communications Security (COMSEC) information and materials. A COMSEC account is also required in order to maintain and use COMSEC Material, which includes accountable/non-accountable COMSEC Material and Controlled Cryptographic Items (CCI). The Contractor shall utilize CRYPTO and have access to Secure Terminal Equipment (STE) and associated encryption device(s) at the Contractor site(s).

C.10.6 Facility Clearance: The Contractor shall possess and maintain a SECRET facility clearance as verified within the National Industrial Security System (NISS).

C.10.7 Physical Security: The Contractor shall be responsible for safeguarding all Government information or property provided for Contractor use. At the end of each work period, Government information, facilities, equipment and materials shall be secured as specified by the 32 CFR Part 117 and the NSWCDD Command Security Manual. Secret storage is required at the Contractor's facility in order to meet requirements of receiving and generating classified material in accordance with this contract.

C.10.8 Electronic Spillage

C.10.8.1 Electronic Spillages (ES) are unacceptable and pose a risk to national security. An electronic spillage is defined as classified data placed on an information system (IS), media or hardcopy document possessing insufficient security controls to protect the data at the required classification level, thus posing a risk to national security (e.g., sensitive compartmented information (SCI) onto collateral, Secret onto Unclassified, etc.). The Contractor's performance as it relates to ES will be evaluated by the Government. ES reflects on the overall security posture of NSWCDD and a lack of attention to detail with regard to the handling of classified information of IS security discipline and will be reflected in the Contractor's performance rating. In the event that a Contractor is determined to be responsible for an ES, all direct and indirect costs incurred by the Government for ES remediation could be charged to the Contractor.

C.10.8.2 NSWCDD Security will continue to be responsible for the corrective action plan in accordance with the security guidance reflected on the DOD Contract Security Classification Specification – DD Form 254. NSWCDD Security will identify the Contractor facility and contract number associated with all electronic spillages that involve the Contractor. NSWCDD Security will notify the Contracts Division with the Contractor facility name and contract number, incident specifics and associated costs for clean-up. The Contracting Officer will be responsible to work with the Contractor Facility to capture the costs incurred during the spillage

clean up. The Contractor is also responsible for taking Information Security Awareness training annually, via their Facility Security Officer (FSO), as part of the mandatory training requirements. If a spillage occurs additional training will be required to prevent recurrence.

C.10.9 Portable Electronic Devices (PEDs)

C.10.9.1 Non-Government and/or personally owned portable electronic devices (PEDs) are prohibited in all NSWCCD buildings with the exception of personally owned cell phones which are authorized for use in General Office Spaces (GOS). All personnel need to be aware of the PEDs policy and being permitted in a building by asking authorized personnel or reviewing the entrance area signs and instructions. The Contractor/personnel visiting shall ensure the onsite personnel remain compliant with this PED policy. NSWCCD instruction defines PEDs as the following: any electronic device designed to be easily transported, with the capability to store, record, receive or transmit text, images, video, or audio data in any format via any transmission medium. PED's include, but are not limited to, pagers, laptops, radios, compact discs and cassette players/recorders. In addition, this includes removable storage media such as flash memory, memory sticks, multimedia cards and secure digital cards, micro-drive modules, ZIP drives, ZIP disks, CD-RWs, DVD-RWs, MP3 players, iPads, digital picture frames, electronic book readers, kindle, nook, cameras, external hard disk drives, and floppy diskettes.

C.10.9.2 Personal Wearable Fitness Devices (PWFDs) marketed primarily as fitness or sleep devices are allowed in all Navy spaces, if they are compliant with NAVADIN 216/15, where collateral non-Sensitive Compartmented Information (SCI), classified information is processed, stored, or discussed up to and including SECRET. The user must ensure the PWFD is compliant with all requirements in NAVADMIN 216/15, Cyber Hygiene Authorization to use Personal Wearable Fitness Devices (e.g., FitBit, Jawbone UP, etc.) in Navy Spaces, dated 14 September 2015 and register PWFD in the NSWCCD Fitness Device Tracker.

C.10.9.3 Personnel requiring the use of Medical Portable Electronic Devices (MPEDS) must submit Form NSWCCD 5239/4 for SCIF authorization to the SCIF authorizations to the Special Security Officer (SSO). For Special Access Program Facility (SAPF) authorizations, follow the guidance provided by the Government Special Access Program Security Officer (GSSO). Authorizations for use in SAPFs that are co-utilized within NSWCCD SCIFS require coordination between both the GSSO and SSO. For authorizations to use MPED in Collateral Classified spaces, submit form to the Special Programs Branch, Code 1053.

C.10.9.4 PED's belonging to an external organization shall not be connected to NSWCCD networks or infrastructure without prior approval from the NSWCCD Information Assurance and Compliance Branch. This approval will be granted using the Temporary Approval Request for Information System (TARIS) form and action tracker process.

C.10.9.5 Personally owned hardware or software shall not be connected or introduced to any NSWCCD hardware, network or information system infrastructure.

C.10.9.6 Navy-issued peripheral:

C.10.9.6.1 Government procured headsets with or without microphones must be wired, use either a 3.5 millimeter (mm) audio jack or universal serial bus (USB) port, cannot contain active-noise cancelling functionality and may be used on systems of classification up to and including collateral Top Secret. The headsets are considered unclassified when unplugged, and must be unplugged when not in use.

C.10.9.6.2 Government procured Bluetooth earbuds and headsets that do not require a USB dongle or any other physical connection to enable wireless connectivity are allowed for use on Government issued tablets, phones, and personal devices in telework environments or unclassified general office space where no classified discussion are occurring.

C.10.9.6.3 Web cameras may only be used on systems at the classification level of the space. For example, in a collateral SECRET open storage area an external web camera may be connected to the SECRET workstation only. No camera pass is required for these devices.

C.10.9.6.4 Government provided printers and/or scanners are authorized in a telework environment. Users must ensure that any paper or media containing CUI or unclassified information not authorized for public release is safeguarded by locking in a drawer, cabinet or room. CUI and unclassified information not approved for public release must be returned to the worksite for destruction.

C.10.9.6.5 Government issued peripherals may be used on personal devices.

C.10.9.6.6 While connected to any Navy network, whether on site or while in a telework environment, the use of headsets with microphones and web cameras are restricted to official Government duties.

C.10.10 Operations Security (OPSEC)

Contractor personnel shall follow OPSEC concepts and principles in the conduct of this requirement to protect critical information, personnel, facilities, equipment, and operations from compromise. All Contractors (including Sub-contractors) shall supplement their current security practices by requiring any personnel involved in executing this contract to complete Government-sponsored and administered Operations Security (OPSEC) training. In addition, all Contractors shall be aware of the Critical Information and Indicators List (CIIL) for the organization they are supporting as well as the OPSEC manual for NSWCDD. These OPSEC requirements will be in effect throughout the life of the procurement from award through the conclusion of services at the end of the period of performance (PoP) or other procurement termination. The Contractor must immediately notify the Government upon the discovery of any nonconformance with the OPSEC manual.

C.10.11 Privacy Program Training

Privacy training is mandatory for all NSWCDD personnel (military, civilian, and Contractor) and must be completed annually. Total Workforce Management Services (TWMS) is the official database for workforce training and is the tool for taking and recording Privacy Act training.

The Contractor is responsible for ensuring individual annual privacy training requirements are met.

C.11 ON-SITE ENVIRONMENTAL REQUIREMENTS

C.11.1 The Contractor shall strictly adhere to all Federal, State and local laws and regulations, Executive Orders, and Department of Defense and Navy policies.

C.11.2 The Contractor shall ensure that each Contractor employee who has been or will be issued a Common Access Card (CAC), performs work in direct support of NSWCDD programs under the NSWCDD Commanding Officer, and sits on-site at NSWCDD, completes the NAVSEA Environmental Awareness Training (TWMS-695388) within 30 days of commencing contract performance and at least every three (3) years thereafter or as directed by their NSWCDD training coordinator or their COR.

C.11.3 The Contractor shall ensure that each Contractor employee not required to complete the training described above (i.e., those who do not have and will not be issued a CAC, do not perform work in direct support of NSWCDD programs under the NSWCDD Commanding Officer, and do not sit on-site at NSWCDD) reads the NSWCDD Environmental Policy Statement within 30 days of commencing contract performance. This document will be available from the COR, however, the policy is also provided on the publicly-available NSWCDD website, <https://www.navsea.navy.mil/Home/Warfare-Centers/NSWC-Dahlgren/Resources/>.

C.11.4 Within 30 days of commencing contract performance, the Contractor shall certify by email to their COR that the requirements captured above have been met. The email shall include each employee name and work site and shall indicate which requirement each employee has satisfied.

C.11.5 Contractor copies of the records generated by the actions described above will be maintained and disposed of by the Contractor in accordance with Secretary of Navy Instruction (SECNAVINST) 5210.8F Department of the Navy Records Management Program.

C.11.6 The Contractor shall perform work under this contract consistent with the relevant policy and objectives identified in the NSWCDD environmental management system (EMS). The Contractor shall perform work in a manner that conforms to all appropriate EMS Plans of Actions and Milestones identified by the NSWCDD EMS Plan. In the event an environmental nonconformance or noncompliance associated with the contracted services is identified, the Contractor shall respond and take immediate corrective and/or preventative actions to ensure the actions do not continue. In addition, the Contractor shall ensure that their employees are aware of their roles and responsibilities identified by the NSWCDD EMS and how these requirements affect their work performed under this contract.

C.12 ON-SITE SAFETY REQUIREMENTS

C.12.1 The Contractor shall strictly adhere to Federal Occupational Safety and Health Agency (OSHA) Regulations, Environmental Protection Agency (EPA) Regulations, NSWCDDINST

5100.01 Occupational Safety and Health Program (current revision), and all applicable state and local requirements.

C.12.2 The Contractor shall ensure that each Contractor employee reads the document entitled, "Occupational Safety and Health (OSH) Policy Statement" within 30 days of commencing performance at NSWCDD. This document is available at: https://flankspeed.sharepoint-mil.us/sites/NAVSEA_NSWCDD_SE/SitePages/OSH-Bulletin-Board.aspx.

C.12.3 The Contractor shall provide each Contractor employee with the training required to do his/her job safely and in compliance with applicable regulations. The Contractor shall document and provide, upon request, qualifications, certifications, and licenses as required. Contractors conducting lead or asbestos abatement activities shall also provide a written abatement plan to the Safety & Environmental Branches for review and approval.

C.12.4 The Contractor shall provide each Contractor employee with the personal protective equipment required to do their job safely and in compliance with all applicable regulations.

C.12.5 Contractors working with ionizing radiation (radioactive material or machine sources) must comply with the latest revision of NAVSEA S0420-AA-RAD-010 (provided upon request). Prior to bringing radioactive materials or machine sources on base, the Contractor must notify the Command Radiation Safety Officer in the Safety Branch.

C.12.6 Contractors shall not procure hazardous material (HAZMAT) on behalf of NSWCDD without following the approved HAZMAT procurement process and obtaining approval from the Safety & Environmental Branches. For emergency HAZMAT purchases only, the Contractor shall alert the Safety & Environmental Branches and request a waiver to procure outside the HAZMAT procurement process. For emergency purchases, the Contractor shall submit an Authorized Use List Addition form and the Safety Data Sheet to the Safety & Environmental Branches for approval. Once the HAZMAT arrives onsite, the Contractor shall alert the Environmental Branch so that it can be barcoded and added to the inventory.

C.12.7 HAZMAT owned by the Contractor and brought into NSWCDD workspaces for temporary use shall be reviewed and approved by the Safety & Environmental Branches prior to use. The Contractor shall submit the Safety Data Sheet that must be routed through the Government supervisor responsible for the specific work area. This HAZMAT must clearly be marked that it is Contractor owned and shall not be stored in NSWCDD spaces.

C.12.8 Contractors shall not procure lithium batteries on behalf of NSWCDD without first receiving an approved Initial Procurement Report or certification letter and obtaining approval from the Safety & Environmental Branches.

C.12.9 Applicable Contractors shall submit Total Case Incident Rate (TCIR) and Days Away, Restricted and Transfer (DART) rates for the past three (3) years upon request by the Safety Branch. A Contractor meets the definition of applicable if its employees worked 1,000 hours or more in any calendar quarter onsite and where oversight is not directly provided in day-to-day activities by the command.

C.12.10 The Contractor shall report all work-related injuries/illnesses that occurred while working at NSWCD, or an off-site location (including shipboard), to the Safety Branch.

C.13 INFORMATION SYSTEMS (IS) AND COMPUTER USAGE

In accordance with U.S. Navy policy, any personnel, including the Contractor, who utilizes DOD owned systems, shall assume responsibility for adherence to restrictions regarding internet and email usage. Navy policy prohibits racist, sexist, threatening, pornographic, personal business, subversive or politically partisan communications. All personnel, including the Contractor, are accountable and must act accordingly. DOD computer systems are monitored to ensure that the use is authorized, to facilitate protection against unauthorized access, and to verify security procedures, survivability and operational security. During monitoring, information may be examined, recorded, copied, and used for authorized purposes. All information, including personal information, placed on or sent over a DOD system may be monitored. Use of a DOD system constitutes consent to monitoring. Unauthorized use may result in criminal prosecution. Evidence of unauthorized use collected during monitoring may be used as a basis for recommended administrative, criminal or adverse action.

C.14 USE OF INFORMATION SYSTEM (IS) RESOURCES

Except in special circumstances explicitly detailed elsewhere in this document, the Contractor shall provide all IS resources needed in the performance of this contract. This includes, but is not limited to computers, software, networks, certificates, and network addresses.

C.14.1 CONTRACTOR USE OF NSWCD IS RESOURCES

(a) In the event that the Contractor is required to have access to NSWCD IS resources, the login name used for access shall conform to the NMCI login naming convention. If the Contractor requires access to applications/systems that utilize client certificates for authentication, the Contractor is responsible for obtaining requisite certificates from a DOD or External Certificate Authority

(b) If this contract requires that the Contractor be granted access and use of NSWCD IS resources (at any site), the IS shall be accredited for Contractor use in accordance with procedures specified by the Information Assurance Office.

C.14.2 CONNECTIONS BETWEEN NSWCD AND CONTRACTOR FACILITIES

If there is a requirement (specifically delineated elsewhere in this contract) for interconnection (e.g., link level or Virtual Private Network (VPN)) between any facilities and/or ISs owned or operated by the Contractor and ISs owned or operated by NSWCD, such interconnection shall take place only after approval from the Information Assurance Office. All such connections as well as the ISs connected thereto will be accredited in accordance with DOD policy (DODI 8510.01 Risk Management Framework for DoD Systems) by the cognizant Designated Approving Authority (DAA) and comply with the requirements of Chairman Joint Chiefs of

Staff Instruction (CJCSI) 6211.02D Defense Information Systems Network (DISN) Responsibilities regarding Memorandums of Agreement. All such connections will be made outside the appropriate NSWCDD firewall.

C.15 PRIVACY INFORMATION

Work under this contract may require that personnel have access to Privacy Information. Contractor personnel shall adhere to the Privacy Act, Title 5 of the U.S. Code Section 552a, FAR 52.224-2 Privacy Act, and applicable agency rules and regulations.

C.16 NON-DISCLOSURE AGREEMENTS (NDAs)

(a) Access to and preparation of sensitive information subject to Privacy Act and Business Sensitive safeguarding and destruction may be required in the execution of tasking associated with this contract. NDAs may be utilized to allow for access to company sensitive/proprietary or Privacy Act data. For tasks requiring NDAs, the Contractor shall obtain appropriate agreements for all their employees that are associated with the task requiring such an agreement.

(b) Contractor personnel may be required, from time to time, to sign NDAs as applicable to specific SOW tasking. The COR will notify the Contractor of the number and type of personnel that will need to sign the NDAs. The signed NDAs shall be executed prior to accessing data or providing support for information that must be safeguarded. Copies of all executed NDAs shall be provided to the COR for endorsement and retention.

C.17 NON-PERSONAL SERVICES/INHERENTLY GOVERNMENT FUNCTIONS

(a) The Government will neither supervise Contractor employees nor control the method by which the Contractor performs the required tasks. The Government will not direct the hiring, dismissal or reassignment of Contractor personnel. Under no circumstances shall the Government assign tasks to, or prepare work schedules for, individual Contractor employees. It shall be the responsibility of the Contractor to manage its employees and to guard against any actions that are of the nature of personal services or give the perception that personal services are being provided. If the Contractor feels that any actions constitute, or are perceived to constitute personal services, it shall be the Contractor's responsibility to notify the Contracting Officer immediately in accordance with FAR 52.243-7 Notification of Changes.

(b) Inherently-Governmental functions are not within the scope of this contract. Decisions relative to programs supported by the Contractor shall be the sole responsibility of the Government. The Contractor may be required to attend technical meetings for the Government; however, they are not, under any circumstances, authorized to represent the Government or give the appearance that they are doing so.

C.18 CONTROL AND ADMINISTRATION OF CONTRACTOR PERSONNEL

(a) The Contractor shall comply with the requirements of NAVSEA and NSWCDD instructions regarding performance in Government facilities. All Contractor personnel engaged in work

while on Government property shall be subject to all applicable DOD and Navy Standards of Conduct.

(b) The Contractor shall be required to obtain identification badges from the Government for all Contractor personnel requiring regular access to Government property. When on-site in Government office spaces, laboratories, test facilities, or ship assets, Contractor employees shall be clearly identified as a Contractor (e.g., utilizing badge identifications and sign identifications in office spaces). The identification badge shall be visible at all times while employees are on Government property. The Contractor shall furnish all requested information required to facilitate issuance of identification badges and shall conform to applicable regulations in the Department of Defense Manual (DODM) 1000.13 DoD Identification (ID) Cards ID Card Life-Cycle concerning the use and possession of the badges.

(c) The Contractor shall ensure that all identification badges issued to Contractor employees are returned to the appropriate Security Office within 48 hours following completion of the contract, relocation or termination of an employee, and upon request by the Contracting Officer.

(d) All Contractor personnel shall identify their company affiliation when answering or making telephone calls and sending email and when attending meetings where Government personnel or representatives from other Contractors are present. In addition, Contractor personnel cannot lead/manage/supervise Government personnel. Contractor program/project managers shall be clearly identified and known as such by Government employees.

(e) All persons engaged in work while on Government property shall be subject to search of their persons (no bodily search) and vehicles at any time by the Government and shall report any known or suspected security violations to the appropriate Security Department. Assignment, transfer, and reassignment of Contractor personnel shall be at the discretion of the Contractor. However, when the Government directs, the Contractor shall remove from contract performance any person who endangers life, property, or national security through improper conduct.

C.19 TERMINATION OF EMPLOYEES WITH U.S. GOVERNMENT BADGES

(a) The Contractor shall ensure that all employees who have a DOD Common Access Card (CAC), turn in the CAC immediately upon employee separation and/or termination of their employment under this contract. The above requirement shall be made a part of the standard employee facility clearance procedures for all separated personnel. The Contractor shall advise Command Physical Security of all changes in their personnel requiring DOD base access.

(b) For involuntarily separated personnel and those separated under adverse circumstances, the Contractor shall notify Command Physical Security in advance of the date, time, and location where the Command representative retrieve the DOD CAC prior to the employee departing the Contractor's facility. In the event the employee is separated in his or her absence, the Contractor shall immediately notify Command Physical Security of the separation and make arrangements between the former employee and Command Physical Security for the return of the CAC. If circumstances arise which necessitate urgent revocation of a CAC after normal business hours, the Mission Partner Identity, Credential and Access Management (MP ICAM) Mission Partner

Affiliation Sponsor (MPAS) shall be immediately contacted. MPAS contact information will be provided by the COR after contract award.

C.20 LABOR TRIPWIRE JUSTIFICATIONS

The Contractor shall monitor monthly average actual spend rates compared to monthly average fully burdened proposed rates on a per CLIN basis. The Contractor shall advise the COR and the Contract Specialist, by email, of any variation of actual-to-proposed rate averages greater than 15 percent. The Contractor's notification shall include the following information:

- (a) an actual vs. proposed average dollar per hour comparison;
- (b) the percentage variation between the actual and proposed average;
- (c) explanation of what is causing the variation;
- (d) whether or not the Contractor expects this condition is temporary or permanent;
- (e) the Contractor's plan for addressing and correcting the variation; and
- (f) additional information as requested by the Government to assist in reporting per the NAVSEAINST 4200.19(series) Planning, Use, and Control of Services Contracting.

C.21 DATA RIGHTS

- (a) This is a contract for the provision of services by the Contractor. In accordance with law and policy and with the provisions of this contract, Contractor personnel shall perform as required by this contract, and such work shall include working in cooperation and collaboration with Government Personnel.
- (b) Performance of this contract work shall require, among other things, the Contractor to access and use Government-owned data such as software, documentation, technical data, process and report templates, and the like. Any and all software, documentation, technical data, and the like generated from such access and use shall also be and remain Government-owned data and shall be included in an appropriate technical report or other deliverable. The Contractor's use of and access to Government-owned data shall neither constitute nor create any Contractor rights in or license to such data; the only Contractor permissions to use and access the data shall be those necessarily required by the Contractor to perform the work herein.
- (c) On occasion and incidental to the provision of support services by the Contractor, the Contractor may be tasked to independently create discrete new data products (e.g., technical analysis, drawings) that do not derive from existing data. Such products shall be specifically identified by the Government in writing and shall be delivered pursuant to the appropriate Contract Data Requirements List (CDRL) document. Rights in such products shall be governed by the appropriate contract clauses.

C.22 DIGITAL DELIVERY OF DATA

(a) Delivery by the Contractor to the Government of certain technical data and other information is now frequently required to be made in digital form rather than in hardcopy form. The method of delivery of such data and/or other information (i.e., in electronic, digital, paper hardcopy, or other form) shall not be deemed to affect in any way either the identity of the information (i.e., as “technical data” or “computer software”) or the Government’s and the Contractor’s respective rights therein.

(b) Whenever technical data and/or computer software deliverables required by this contract are to be delivered in digital form, any authorized, required, or permitted markings relating to the Government’s rights in and to such technical data and/or computer software must also be digitally included as part of the deliverable and on or in the same medium used to deliver the technical data and/or software. Such markings must be clearly associated with the corresponding technical data and/or computer software to which the markings relate and must be included in such a way that the marking(s) appear in human-readable form when the technical data and/or software is accessed and/or used. Such markings must also be applied in conspicuous human-readable form on a visible portion of any physical medium used to effect delivery of the technical data and/or computer software. Nothing in this paragraph shall replace or relieve the Contractor’s obligations with respect to requirements for marking technical data and/or computer software that are imposed by other applicable clauses such as, where applicable and without limitation, DFARS 252.227-7013 Rights in Technical Data – Other Than Commercial Products and Commercial Services and/or DFARS 252.227-7014 Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation.

(c) Digital delivery means (such as but not limited to Internet tools, websites, shared networks, and the like) sometimes require, as a condition for access to and/or use of the means, an agreement by a user to certain terms, agreements, or other restrictions such as but not limited to “Terms of Use,” licenses, or other restrictions intended to be applicable to the information being delivered via the digital delivery means. The Contractor expressly acknowledges that, with respect to deliverables made according to this contract, no such terms, agreements, or other restrictions shall be applicable to or enforceable with respect to such deliverables unless such terms, agreements, or other restrictions expressly have been accepted in writing by the Contracting Officer; otherwise, the Government’s rights in and to such deliverables shall be governed exclusively by the terms of this contract.

SECTION C CLAUSES INCORPORATED BY FULL TEXT

TO BE COMPLETED